REBOOT?

Felony Murder

Oklahoma

First-Degree — § 701.7(B):

A person commits **murder in the first degree**, regardless of malice, when that person or any other person takes the life of a human being during, or if death results from, the commission or attempted commission of: **murder, shooting with intent to kill, discharge of firearm into a dwelling, forcible rape, robbery with a dangerous weapon, kidnapping, escape from lawful custody, eluding an officer, first degree burglary, first degree arson, unlawful distributing of controlled substances, trafficking in illegal drugs, or manufacturing controlled substances**.

Second-Degree — § 701.8(2):

Homicide is murder in the second degree when a person is engaged in the commission of any felony other than the unlawful acts set out in Section 701.7(B).

MPC 210.2(1)

Criminal homicide constitutes murder when:

…

(b) it is committed **recklessly under circumstances manifesting extreme indifference to the value of human life**. Such recklessness and indifference are presumed if the actor is engaged in or is an accomplice in the commission of, or an attempt to commit, or flight after committing or attempting to commit **robbery, rape or deviate sexual intercourse by force or threat of force, arson, burglary, kidnapping or felonious escape**.

1. Arson-Homicide

Facts: David sets fire to the house his ex-wife won in the divorce. She dies in the fire. He claims that he did not know she was home, and set fire to the house because he thought it was unfairly awarded it to her. The prosecution believes he knew she was home, but cannot prove it.

Questions: (1) What would the prosecution need to prove under the Model Penal Code? (2) Under a traditional (OK) rule? (3) Which statute would the prosecution prefer?

2. Unintentional Homicide

Facts: David discovered that: (1) his wife, during a trial separation; (2) she moved in with her new boyfriend; and (3) she has taken with her the stereo she gave David as a birthday gift. David breaks into the boyfriend's apartment at night to retrieve the stereo. As he unplugs it, a spark from the outlet ignites a fire inside the wall. The fire spreads quickly. David's wife and her boyfriend die in the fire.

Questions: (1) What would the prosecution need to prove under the Model Penal Code? (2) Under a traditional (OK) rule? (3) Which statute would the prosecution prefer?

3. Intentional Homicide

Facts: David, during a trial separation from his wife, discovers she is seeing another man. He forces his way into their home and kills his wife and her boyfriend with his bare hands

Questions: (1) What would the prosecution need to prove under a traditional felony murder rule? (2) What will the Defense argue? (3) How would this turn out under the Model Penal Code?

Limitation #1: “Inherently Dangerous”

Two Approaches:

“Facts” Approach: focus on the particular facts of the crime in that case (MA, e.g.)

“Elements” Approach: examine the elements of the felony in the abstract (CA, e.g)

Limitation #2: Merger Doctrine

The merger doctrine excludes felonies that are presupposed by a murder charge, most notably assault and, in some states, child abuse and neglect.

Wilson (CA)

FACTS: There the defendant forcibly entered his estranged wife's apartment carrying a shotgun. Once inside the apartment, he fatally shot a man in the living room and proceeded to break into the bathroom where he killed his wife.

MERGER: The felony of ADW merges with the killing.

Judicial Abolition

Require proof of “malice” for all murder convictions. This is basically what the MPC does.

Commonwealth v. Brown (Mass. 2017)

- Brown lent a gun and hooded sweatshirts to co-conspirators planning a robbery
- He stayed home; two victims were shot and killed at the scene
- Convicted of two counts of first-degree felony murder as an accomplice
- SJC reduced to second-degree: Brown was on the "remote outer fringes" of the joint venture
- Four justices announced prospectively that Massachusetts would abandon "constructive malice" — future murder convictions require proof of actual malice

Commonwealth v. Brown

In 2017, Supreme Judicial Court of Massachussetts held that “in the future, felony-murder is no longer an independent theory of liability for murder but is rather limited to its statutory role under Mass. Gen. Laws ch. 265, 1 as an aggravating element of murder.”

Legislative Abolition

Hawaii & Kentucky: Just use normal murder statutes & doctrine.

Judicial Abolition

Require proof of “malice” for all murder convictions. This is basically what the MPC does.

Major Reforms

California, Colorado, Illinois, and Minnesota have all passed major reforms aimed at felony murder.

Pending Reforms

New York & Pennsylvania – two of the most commonly cited traditional felony murder jurisdictions – are now trying to reform felony murder.

Which Approach?

What should a court, faced with a broken felony murder doctrine, do?

- Whis is more “respectful” of the legislature?
- Which more likely to get a law that reflects good policy?

Misdemeanor Manslaughter

Similar Structure

- Misdemeanor causing death = manslaughter
- Prosecution need not prove gross negligence or recklessness

Similar Problems

Weitbrecht (cardiac event, crossed center line ➔ manslaughter

Todd: petty theft, pursuer heart attack ➔ manslaughter

Limitations & Limitations

- *Williams* (PA): Expired license, traffic accident ➔ unrelated: not manslaughter

- *Walker* (DC): Dropped an unlicensed gun that discharged and killed bystander ➔ related: manslaughter

Great White
Rock me
Once bitten twice shy
Move it

The Gap

- Lots of people are caught up in felony murder & misdemeanor manslaughter charges
- Somehow the Warner Lamberts & Don Blankenships of the world evade prosecution under the doctrine. Why?

Next Up

Reform Movements:
Drug & Gun Crimes